

Flock Safety Credibility Lost as it Repeatedly Lies to City Councils, Police Departments, and Public Across the Country

The ACLU documents how an automatic license plate reader company has lied about its operations, signaling a need for reputable governments to avoid working with Flock Safety.

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Tracking ALPR Cameras News Series

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The ACLU documents how an automatic license plate reader company has lied about its operations, signaling a need for reputable governments to avoid working with Flock Safety.

During a city council meeting in a suburb of Wisconsin in April, the city of Oshkosh considered whether it should approve a contract to use automatic license plate readers (ALPR) from Flock Safety, a prominent company that provides ALPRs to law enforcement agencies across the country. During the meeting, one city council member asked Flock if the company's ALPR system created heat maps that could reveal where a particular vehicle had driven over a period of time. Flock's chief information security officer, who was in attendance, [told the council](#) that Flock's system did not "[create a pattern or heat map of an individual's movement](#)" through the tracking of their vehicles. At the end of that meeting, the Oshkosh City Council approved a contract with Flock. The very next morning, the city [learned that Flock had lied](#).

Later that day, the city council reconvened to discuss what it had learned. Confronting Flock, Oshkosh Deputy Mayor Joe Stephenson said "I don't know how this body can govern if someone tells untruths, mistruths, exaggerated truths. I don't know how I can make a decision or discern what's right or what's wrong, or even the capabilities of this system if you lie to me."

"Shame on them," Oshkosh Mayor Matt Mugerauer added. "All I'm saying is if you give bad information, then I just don't want to work with you."

Ultimately, the Oshkosh City Council [voted to immediately revoke](#) its approval, thereby setting a record for the shortest time between a city approving and cancelling a Flock contract: one day.

Flock later [admitted](#) that its ALPR system does indeed produce a “heat map” that shows where “point-in-time images have been captured of a vehicle” for up to an entire month. However, the company chose to respond to the revocation of its contract by attacking the City of Oshkosh and its city council, complaining that Flock had “not [been] afforded the opportunity” to explain its lie after being caught. Flock also sought to trivialize its factually inaccurate statement by categorizing it as “one small misconception” and referring to the dispute over the system’s heat map tracking feature as “a minor nuance.”

What happened in Oshkosh was not an isolated incident. Rather, it reflects a pattern of Flock regularly misleading or even lying about its business practices, safety record, commitment to privacy, and efforts to protect vulnerable populations. And as was the case in Oshkosh, Flock’s lies are not just directed at the general public; they often specifically target Flock’s potential government customers. The urgent takeaway for government officials and police departments is that they should be extremely hesitant to believe anything Flock’s tells them about its company, its products, or its commitment to safety and privacy.



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Flock's Pattern of Lies

This is far from the first time Flock has misled the public and elected officials. The company has demonstrated a pattern of treating legitimate operational questions and concerns not as problems to be solved, but rather as mere public relations issues.

In Colorado, Loveland Police Chief Tim Doran raised concern that federal agents were accessing the town's ALPR data. [Flock responded by telling](#) the chief that federal agencies no longer had access to Loveland's license plate readers, and had their CEO reiterate to the press that federal data sharing was a non-issue because Flock had no federal contracts. After contradictory information later came to light, the company was forced to admit that it did, in fact, have contracts with U.S. Customs and Border Protection (CBP) and Homeland Security (DHS) for pilot projects that gave those agencies direct access to license data. "We clearly communicated poorly," Flock's CEO [said](#), acknowledging that Flock's "public statements inadvertently provided inaccurate information."

Last year, [reports](#) revealed that, even in the absence of federal contracts, cooperating police officers and departments were regularly sharing Flock ALPR data and search results with immigration agencies like U.S. Immigration and Customs Enforcement (ICE) and CBP. The company responded to the reports with a disingenuous [blog](#) entitled "Does Flock Share Data With ICE? No. Flock Does Not Work With ICE." In its blog, the company pushed back by asserting that "ICE does not have direct access to Flock cameras, systems, or data" and that license data is "owned and controlled by the customer."

Flock knew that, despite not being a customer, ICE had indirect access to Flock's data and system through the company's state and local law enforcement customers. The issue was never about having direct access to Flock's data, it was about having any access to the data. But rather than address these data security and control issues on their merits, Flock released a misleading blog which reads as an attempt to confuse the public and create a false sense of security among its potential government customers. Ultimately, Flock was forced to accept that its denials were simply not credible. The CEO admitted Flock was used for immigration enforcement but argued that such matters were [not Flock's problem](#).

In May 2025, the press [began reporting](#) that Flock's ALPR system had been used by law enforcement in at least one state, Texas, to track down a person seeking abortion care in another state, Illinois. Flock sought to assuage concerns about its system being used for cross-state abortion enforcement by unveiling "New Product Solutions to Strengthen Compliance" led by its "Proactive Search Term Tool." In describing this new tool, Flock wrote:

New Product Solutions to Strengthen Compliance

Proactive Search Term Tool (*Launched June 12, 2025*)

Immediately following these incidents, our Product team deployed a new safeguard that will block impermissible searches from accessing Illinois data in real time. Here's how it works:

- All Flock system searches require a "search reason." This is part of our longstanding focus on transparency and accountability.
- If a search involving Illinois camera data includes terms that indicate an impermissible purpose under Illinois law, the Illinois data will automatically be excluded. This proactive measure significantly reduces the risk of inadvertent misuse.

While Flock claimed its new oversight tool would "significantly" reduce the risk of improper uses like abortion enforcement, in reality the tool doesn't work. As an investigation by our colleagues at the ACLU of Massachusetts [found](#), Flock network audits showed police frequently enter vague terms like "investigation" or "susp" instead of information about the substance of the investigation into the search reason field. In September 2025 alone, a local Oregon police department was [allowed to search Flock's ALPR system](#) after entering "investigation" into the search reason field 111 times and "hehehe" into the field on 20 occasions, which demonstrates how easy it is to search Flock's system while avoiding security-triggering words like "abortion." Flock certainly would have known, if it conducted even a rudimentary test of its system, that the search field's protections were extremely simple to circumvent. Nevertheless, Flock's financial interests appear to have been better served by the company misrepresenting the efficacy of its security features to the public and its potential government customers.

Flock Even Lies About Partnering with the ACLU

Flock has even made false claims to the public and elected officials about working with the ACLU. Earlier this year, after the ACLU of New Mexico and Flock supported the same state-level ALPR legislation — albeit for very different reasons — Flock's Senior Director of Public Affairs took to social media to claim that Flock partnered with the ACLU of New Mexico to craft the bill and pass it.



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In New Mexico, [Flock](#) partnered with the ACLU of New Mexico and law enforcement partners to craft a bill that balanced both community safety and community values. It is important to note that public safety tech doesn't only protect the public, but law enforcement themselves.

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Believe it: Flock, ACLU NM, and immigrant rights groups came together to pass a serious data privacy bill. Don't believe the ideologues who say safety and privacy can't be balanced.

I'm proud to work on a team that's engaging in serious conversations to keep both communities and privacy safe!

<https://lnkd.in/gMuqxeb8>

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This was not the first time the ACLU has caught Flock falsely claiming to have worked with us. During an Urbana, Illinois City Council [meeting](#) in 2021, the company told councilmembers 23 minutes into the discussion that “Flock has worked with groups like the ACLU to design an ALPR system that takes considerations they have into account.”

To be clear, neither the ACLU nor any of our affiliates have ever partnered with Flock Safety or worked with them to design any ALPR system. As an organization that has spent 106 years earning our good name and reputation, we can confidently advise Flock that lying to the public and elected officials about your work and your relationships is not how you get there.

Ultimately, reputable governments should not do business with disreputable companies. While governments should think long and hard about not using ALPRs, if local governments insist on doing so, at a bare minimum, they should adopt strong guardrails governing future ALPR use – including strictly limiting data retention, data sharing, and what crimes they can be used to enforce. And, of course, they should refuse to partner with any company that regularly misleads the public, elected officials, and even its own customers.

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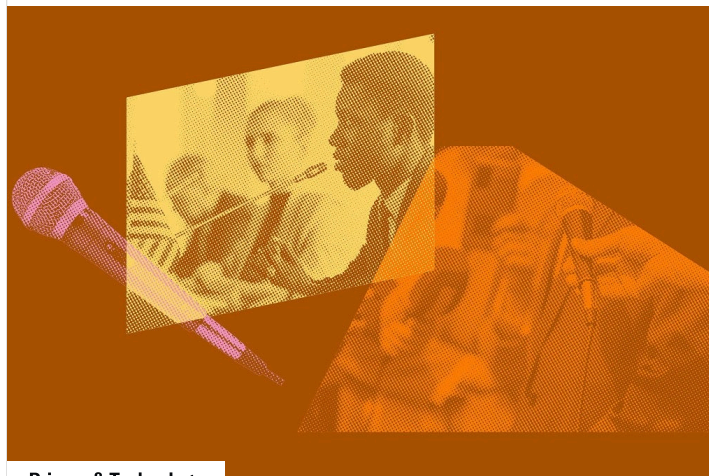
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Press Release

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ACLU Applauds Important Supreme Court Decision Making Clear Location Data is Protected by the Constitution

WASHINGTON — The Supreme Court held today that a dragnet search using Google’s location history data is covered by the Fourth Amendment’s protections against unreasonable search and seizures. The decision forcefully rejected the government’s argument that law enforcement can request our location data in the form of a “geofence” search free of any Fourth Amendment limitation. The geofence search at issue in the case is an invasive surveillance technique that enables police to search for and locate unknown numbers of people in a large geographical area by exploiting cell phone location data held by

Google. “The Court’s decision provides critical protection against invasive and overbroad government searches of our personal information,” said Brett Max Kaufman, senior counsel with ACLU’s Center for Democracy. “Although Google already changed its system so it no longer has access to the same data the government had been seeking through geofence warrants, similar kinds of reverse searches of sensitive data held by other companies will continue to be a threat to privacy. Law enforcement and courts are on notice that new technology does not open up surveillance loopholes, and strict adherence to the Fourth Amendment’s protections is required.” In the five-justice majority opinion, Supreme Court Justice Elena Kagan compared the geofence search of Google location history to the cell site location information (CSLI) at issue in the landmark 2018 decision in *Carpenter v. United States*, an ACLU case. Justice Kagan wrote, “Location History implicates personal privacy interests even more than CSLI, because Location History is more the cell-phone user’s own. Most cell-phone users have no awareness of CSLI records, and would never try to retrieve them; by contrast, Google users regularly employ Location History as a personal journal. In that way, Location History resembles other private materials—e.g., emails, documents, photographs, or calendars—that even if stored on Google’s servers, a user reasonably views as his own and expects to be shielded from the “inquisitive eyes” of the government.” Separately, Justice Gorsuch also rejected the government’s argument, concluding that a geofence search violates an individual’s right to personal property. Three justices dissented. Geofence warrants direct Google or other companies to hand over users’ location data from cell phones and other mobile devices the company estimates were in a certain area during a certain time frame — regardless of whether police demonstrate that they had reason to believe the people who own these devices were involved in any crime. A high-level analysis conducted by ACLU of Northern California of the types of places captured by law enforcement in geofence warrants across San Francisco, for instance, revealed a troubling pattern of broad searches that swept in many people with no connection to the crime, including at their homes and other constitutionally-protected spaces. The American Civil Liberties Union, the ACLU of Virginia, Electronic Frontier Foundation, and the Center on Privacy & Technology at Georgetown Law filed an amicus brief in this case, arguing that these geofence searches implicate core Fourth Amendment concerns, and that police should not be able to conduct searches using geofence warrants because they sweep in people as to whom the government has no reason to believe they were engaged in criminal conduct. As the groups explained, a search that ensnares any number of innocent people just because they are nearby when a crime occurs is an unconstitutional fishing expedition that violates the Constitution. “The Court’s decision confirms that law enforcement does not have a blank check to use new technology to conduct warrantless surveillance of people’s movements,” said Eden Heilman, legal director of the ACLU of Virginia. “We do not lose our right to privacy simply because we use a cellphone.” In its decision today, the Court held that a government request for any amount of cell phone location history is a search under the Fourth Amendment and thus requires a warrant. The Court left it to the lower courts, on remand, to assess whether the warrant that the government obtained in this case complies with Fourth Amendment requirements. The ACLU’s amicus brief in *United States v. Chatrue* is part of the Joan and Irwin Jacobs Supreme Court docket.

Court Case: *United States v. Chatrue*

Affiliate: Virginia



Privacy & Technology

How to Fight Deployment of Flock and Other Mass Surveillance License Plate Readers in Your Community

The ACLU provides a range of tactics for communities to stop or limit the use of Flock's ALPR mass surveillance technology

By: Chad Marlow, Jay Stanley

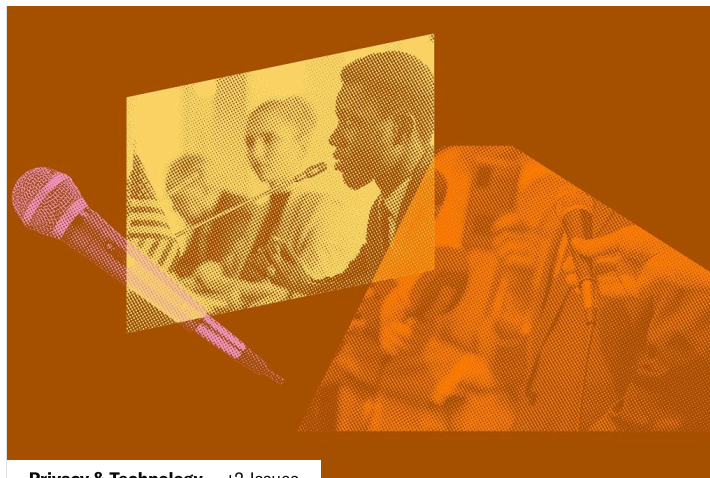


Privacy & Technology Criminal Law Reform

Surveillance is Driving a Corporatization of Police Departments

What are the implications of having for-profit companies at the heart of American police departments?

By: Jay Stanley



Privacy & Technology +2 Issues

In New Report, ACLU Warns Against Giving Private Companies Centralized Access to Police Data

WASHINGTON – The American Civil Liberties Union (ACLU) released a new report today about the increasingly central role that surveillance and tech companies are playing in US police departments and how that threatens to give private companies unfettered access to Americans' sensitive data. The report examines the major companies involved, the potential ways this information could be abused or exploited, and the history of close ties between corporations and police. Every day, police across the country use body cameras, drones, dash cams, and fixed surveillance cameras gathering hours upon hours of footage of people going about their daily lives. And now, some of the biggest surveillance tech companies, including Axon, Flock, and Motorola, want to gather, analyze, and control this data by providing "operating systems" for police departments that, like operating systems on computers and phones, can see and control all the data in the system. This will threaten the civil rights and civil liberties of everyone who interacts with one of these cameras — knowingly or not. Part of this trend is the movement towards police cloud services, which facilitates the consolidation of data from thousands of U.S. police departments within corporate servers and gives these private actors live remote control over the surveillance tech even after it's deployed in communities. Or as Axon puts it on their website, "integrating hardware devices and cloud software solutions" in "the Axon ecosystem" and connecting "every officer, responder and agency." "Putting private, for-profit companies at the heart of modern police departments — what could go wrong? The answer is: plenty, and that's what this paper outlines" said Jay Stanley, senior policy analyst with the ACLU's Speech, Privacy and Technology Project. "Policymakers, the public, and the policing profession need to grapple with the implications of this corporatization of police departments — especially for people's civil rights and liberties — and address it before this becomes normalized and leads to new forms of abuse we've never seen before." These new corporate efforts to expand their work with police are especially worrying given how quickly surveillance technology is proliferating across the country — and how few places have strong guardrails or oversight in place. As the report details, there are many ways providers could exploit their insider access to this data, including using it to go after critics, journalists, labor unions, regulators, and competitors, or to try and fend off investigations into their products. The lack of safeguards also means that company employees could use this data to target exes, manipulate prediction markets, or even alter evidence. Unfortunately, it's not just the companies selling these products that the public needs to be worried about. According to the report, there is another set of players that raise many of the same concerns about private

companies' access to police data and the corporate role in policing: cloud computing platforms like Amazon Web Services (AWS), Microsoft Azure, and Google Cloud Platform, which currently also have access to the growing mountain of data generated by surveillance-based policing. The report lays out six recommendations that policymakers could implement to protect their constituents. Recommendations include contract requirements restricting private vendors' access to law enforcement data, mandating the use of local rather than cloud services, and passing both the Fourth Amendment Is Not For Sale Act and Community Control Over Police Surveillance (CCOPS) laws.

